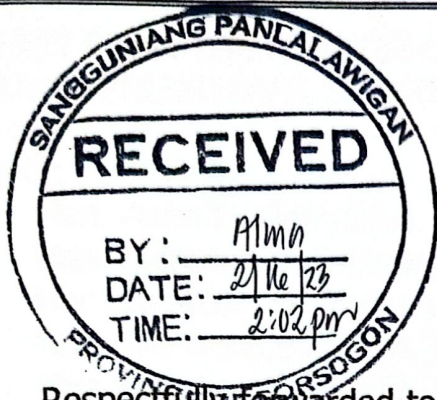




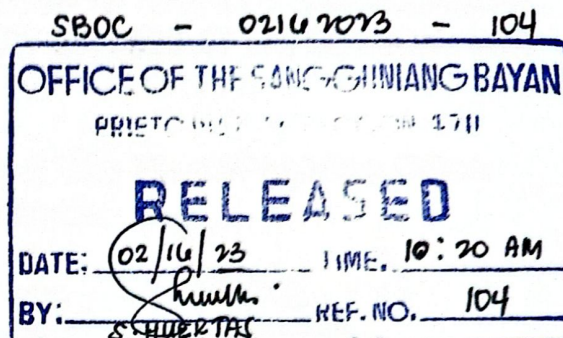
Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ
Prieto Diaz, Sorsogon 4711
LGU TIN: 000794065



Office of the Sangguniang Bayan



1st Endorsement
February 16, 2023



Respectfully forwarded to the Honorable Sangguniang Panlalawigan of Sorsogon through **Hon. Vice Governor KRUNIMAR ANTONIO D. ESCUDERO II**, the herein attached Ordinance No. 2022-10 entitled: **"AN ORDINANCE IMPOSING REGULATORY FEES ON ELECTRIC POSTS/POLES OWNED BY SORSOGON II ELECTRIC COOPERATIVE (SORECO II) ATTACHED WITH TELECOMMUNICATION/CABLE EQUIPMENT AND PERIPHERALS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON"** for its information, review and appropriate action.


EVIE D. ENAJE
Administrative Aide VI

Copy furnished:

- Hon. Romeo D. Domasian
Municipal Mayor
- Engr. Exequiel Destura
Municipal Engineer
- Ms. Gemma D. Ferrer
Acting Municipal Treasurer
- Engr. Jose Erwin Tabuena
General Manager
SORECO II
- Mr. Rodger R. Embile
Supervisor
SORECO II Prieto Diaz
- File



Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ
Prieto Diaz, Sorsogon 4711
LGU TIN: 000794065
Official Email Add: sbprietodiaz@gmail.com



Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON JANUARY 23, 2023 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Florence D. Detecio, RN	S. B. Member
Hon. Jo Madel D. Domalaon	-do-
Hon. Bienvenido D. Ayo, Jr.	-do-
Hon. Luis Lee E. Espeña, Jr.	-do-
Hon. Alice D. Emano	-do-
Hon. Rodolfo E. Diolata	-do-
Hon. Albert D. Destura	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member

ABSENT:

Hon. Juan D. Ebid	S. B. Member – on leave
Hon. Ronniel D. Diolata	SKMF Pres. – on leave

ORDINANCE NO. 2022-10

Re-introduced by Hon. Florence Detecio & Hon. Avon D. Domalaon

AN ORDINANCE IMPOSING REGULATORY FEES ON ELECTRIC POSTS/POLES OWNED BY SORSOGON II ELECTRIC COOPERATIVE (SORECO II) ATTACHED WITH TELECOMMUNICATION/CABLE EQUIPMENT AND PERIPHERALS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

WHEREAS, the Sangguniang Bayan is in receipt of Sangguniang Panlalawigan Resolution No. 368-2021 urging the LGUs to enact ordinances prescribing annual fees or charges to SORECO I/II for every post that Telcos attached their equipment, cables and wires;

WHEREAS, the increasing number of electric posts/poles in the municipality pose hazard to traffic and safety of the public if they are not well-maintained;

WHEREAS, it is for this reason that the Local Government Unit imposes some form of regulation thereon;

WHEREAS, under the Local Government Code, the municipality is vested with authority to impose regulatory fees and charges for activities and undertakings being done in the municipality;

Be it ordained by the Sangguniang Bayan of the Prieto Diaz in session assembled that:

SECTION 1. IMPOSITION OF FEE

There shall be imposed a regulatory fee on electric posts owned by SORECO II, installed with telecommunication peripherals / cable equipment, erected on government and/or private lots along government streets, roads, highways and/or alleys at the rate of two hundred pesos (P 250.00) per post per telco/cable company annually.

SECTION 2. INSPECTION AND INVENTORY

For this purpose, the Municipal Engineer shall conduct an annual inspection and inventory of all electric and telecommunication poles, posts and towers in the municipality, commencing from January of every year, indicating the number of Telco/cable companies attached thereto, and submit the same to the Municipal Treasurer for purposes of imposing the fee under this ordinance. The annual inventory of poles/post may be done with the personnel from SORECO II.

SECTION 3. POLES/POSTS OWNED BY THE NATIONAL GOVERNMENT

The provision of Section 1 hereof shall not apply to poles, posts or towers erected or owned by the national government and its instrumentalities.

SECTION 4. APPLICABILITY OF OTHER ORDINANCES/LAWS

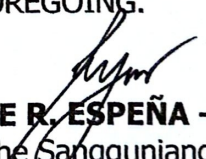
The pertinent provisions of the existing Revenue Code, Municipal Ordinance No. 2016-10 covering the imposition of Mayor's Permit Fee and other appropriate administrative provisions thereof shall apply in the imposition of the fee under this ordinance.

SECTION 5. EFFECTIVITY

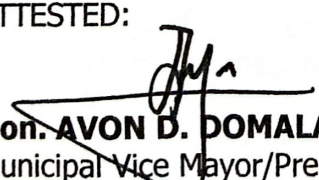
This Ordinance shall take effect upon approval and completion of the posting/publication requirement as stated in the Local Government Code of 1991.

Let copies of this ordinance be forwarded to the Sangguniang Panlalawigan through Vice Governor Hon. Krunimar Antonio Escudero, MDMG; copy furnished Hon. Romeo D. Domasian, PhD, Municipal Mayor; Engr. Exequiel Destura, Municipal Engineer; Ms. Gemma D. Ferrer, Acting Municipal Treasurer; Engr. Jose Erwin Tabuena, The General Manager, SORECO II; Mr. Rodger R. Embile, Supervisor, Prieto Diaz Satellite Office and all concerned for their information and appropriation action.

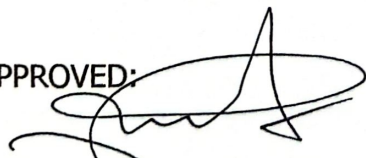
I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA - YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

APPROVED:


Hon. ROMEO D. DOMASIAN, PhD
Municipal Mayor
Date approved: FEB 09 2023



Republic of the Philippines
PROVINCE OF SORSOGON
Sorsogon City



SANGGUNIANG PANLALAWIGAN

SP Building, Gov. Augusto G. Ortiz Drive corner, Gov. Salvador C. Escudero, Sr. Drive,
Capitol Compound, Brgy. Burabod, East District, Sorsogon City

APR 17 2023

March 30, 2023

TRANSMITTAL NO. 230-2023

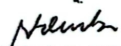
TRANSMITTAL FOR: THE HONORABLE SANGGUNIANG BAYAN
Thru: Ms. BERNADETTE E. YAO
Secretary to the Sangguniang Bayan
LGU – Prieto Diaz, Sorsogon

Respectfully transmitting the copies of resolutions approved by the 11th Provincial Board on March 13, 2023 (37th Regular Session) for your information/appropriate action:

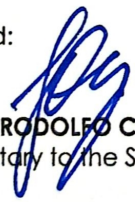
RESOLUTION NO. 151-2023 - RESOLUTION APPROVING PRIETO DIAZ ORDINANCE NO. 2023-03, ENTITLED: "AN ORDINANCE APPROVING AND ADOPTING THE ORGANIZATIONAL STRUCTURE AND STAFFING PATTERN (OSSP) OF THE LOCAL GOVERNMENT UNIT OF PRIETO DIAZ, SORSOGON."

RESOLUTION NO. 153-2023 - RESOLUTION DECLARING INVALID PRIETO DIAZ ORDINANCE NO. 2022-10, ENTITLED: "AN ORDINANCE IMPOSING REGULATORY FEES ON ELECTRIC POSTS/POLES OWNED BY SORSOGON II ELECTRIC COOPERATIVE (SORECO II) ATTACHED WITH TELECOMMUNICATION/CABLE EQUIPMENT AND PERIPHERALS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON."

Prepared by:


RHEA T. DIESTA
Local Legislative Staff Officer III

Noted:


ATTY. RODOLFO C. DEALCA, JR.
Secretary to the Sangguniang Panlalawigan

CBIC - 0414 7073 - 145

OFFICE OF THE SANGGUNIANG BAYAN	
PRIETO DIAZ, SORSOGON 4711	
RECEIVED	
DATE: 6/14/23	TIME: 8:30 AM
BY: S. CHUQUILAS	REF. NO. 105



Republic of the Philippines
PROVINCE OF SORSOGON
Sorsogon City



SANGGUNIANG PANLALAWIGAN

SP Building Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,
Capitol Compound, Brgy. Burabod, East District, Sorsogon City-4700

EXCERPT FROM THE JOURNAL OF THE 37th **REGULAR SESSION** OF THE 11TH **PROVINCIAL BOARD** ON **March 13, 2023** AT THE SP SESSION HALL, SANGGUNIANG PANLALAWIGAN BUILDING, GOV. AUGUSTO G. ORTIZ DRIVE COR. GOV. SALVADOR C. ESCUDERO, SR. DRIVE, CAPITOL COMPOUND, BRGY. BURABOD, EAST DISTRICT, SORSOGON CITY.

PRESENT:

Hon. Krunimar Antonio D. Escudero II, Vice Governor/Presiding Officer

1ST DISTRICT

Hon. John Ryan C. Dioneda
Hon. Maria “Nini” O. Ravanilla
Hon. Ralph Walter R. Lubiano
Hon. Edmundo A. Atutubo
Hon. Rommel John C. Mella

2ND DISTRICT

Hon. Ramil M. Robles
Hon. Juan G. Guysayko
Hon. Benito L. Doma
Hon. Roland R. Añonuevo
Hon. Eduardo E. Ong Jr.

EX-OFFICIO

Hon. Ramon B. Escudero – Provincial President, Philippine Councilors League
Hon. Jose Arturo D. Enano – Provincial President, Liga ng mga Barangay
Hon. Lorenz S. Abenion – Provincial President, Sangguniang Kabataan Federation

-oOo-

RESOLUTION NO. 153-2023

RESOLUTION DECLARING INVALID PRIETO DIAZ ORDINANCE NO. 2022-10, ENTITLED: “AN ORDINANCE IMPOSING REGULATORY FEES ON ELECTRIC POSTS/POLES OWNED BY SORSOGON II ELECTRIC COOPERATIVE (SORECO II) ATTACHED WITH TELECOMMUNICATION/CABLE EQUIPMENT AND PERIPHERALS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON.”

WHEREAS, submitted to the Sangguniang Panlalawigan of Sorsogon was Prieto Diaz Ordinance No. 2022-10 for review and appropriate action;

WHEREAS, the regulatory fee of P250 per electric post/pole imposed is not in consonance to the provisions of the National Building Code of the Philippines as to the allowable fee chargeable on each electric/utility post with attached telecommunication/cable TV equipment/peripherals. Also, the actual number of electric/utility posts with telecommunication/cable TV equipment/peripherals was not included in the ordinance;

WHEREAS, it is the recommendation of the Board that the sangguniang bayan adhere to the findings and recommendations of the reviewing committee;

NOW, THEREFORE, on motion of Hon. Edmundo A. Atutubo, jointly seconded by Hon. Roland R. Añonuevo and Hon. Ramil M. Robles, the board **RESOLVED**, as it is hereby

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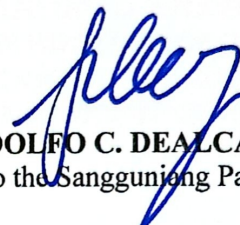
DONE, to DECLARE INVALID PRIETO DIAZ ORDINANCE NO. 2022-10, ENTITLED: "AN ORDINANCE IMPOSING REGULATORY FEES ON ELECTRIC POSTS/POLES OWNED BY SORSOGON II ELECTRIC COOPERATIVE (SORECO II) ATTACHED WITH TELECOMMUNICATION/CABLE EQUIPMENT AND PERIPHERALS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON."

LET COPIES of this resolution be furnished Mayor Romeo D. Domasian and the Sangguniang Bayan of Prieto Diaz, Sorsogon for their information, guidance and appropriate action.

APPROVED.

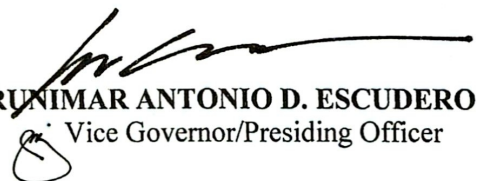
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I HEREBY CERTIFY to the correctness of the foregoing.


RODOLFO C. DEALCA, JR.

Secretary to the Sangguniang Panlalawigan

ATTESTED:


HON. KRUNIMAR ANTONIO D. ESCUDERO II, MDMG

Vice Governor/Presiding Officer